DIVISION BENCH ITEM NO.124

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA No.28/2023 IN CP (CAA) No.05/ALD/2023
IN CA (CAA) No.9/ALD/2022 (Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 4th April, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Saurabh Khanna, Adv. *: For the Petitioner Companies*

Sh. Ajeet Kumar Singh, AOL *: For the OL Alld.*

Sh. Shivendra Bahadur Singh, CGSC *: For the ROC*

Sh. Niraj Kumar Singh, Proxy for Sh. Gaurav Mahajan, Sr. S.C. *: For the IT Deptt.*

ORDER

Ld. Counsels representing their respective parties are present.

1. The reports on behalf of ROC, RD/ Official Liquidator and Income Tax Department have already been filed.

2. On the previous date of hearing i.e. 21.03.2024, it was observed at para no.2 by this Tribunal that some assessment proceeding was pending with the Income Tax Department, which was to be completed by 31.03.2024, and therefore at the request of Ld. Counsel representing the Income Tax Department, the matter was adjourned beyond 31.03.2024.

-Sd- ***-Sd-***

3. Today, when the matter came up for hearing, the Ld. Counsel representing the Income Tax Department very candidly states that the assessment proceedings which was being carried out, have finally been dropped, however he does not have any written instruction to that effect, and he seeks one week time to file the said information on an affidavit.

4. The publications have been made in the newspaper in compliance of the notice of order dated 30.05.2023 and the affidavit of service has also been filed.

5. Ld. Counsel representing the Petitioner Companies states that neither the Petitioners nor any representative has received any adverse comments or observations from any of the stakeholders or any party in pursuance of the advertisement so made. The affidavit to this effect be filed within a period of one week.

6. Arguments heard. Order reserved.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

4th April, 2024

Kavya Prakash Srivastava
(Stenographer)